The Rules Got Simpler. Companies Became the Enforcers.

Over this cycle, the enforcement load moved from regulators onto companies' own systems. In August the question was whether each jurisdiction had a funded enforcer. That still matters, but the rules that bit this cycle needed little enforcer at all. Makers of connected products must report exploited vulnerabilities within 24 hours, service providers must answer police production orders within 10 days, importers declare products at the border, suppliers meet conditions written into purchase rules, and software makers face no-fault liability from December. Simplification moved the headline dates; the duties came back as reporting clocks, declarations and claims. What follows is the warnings this portfolio carried early, the assumptions that changed, and the decisions now ready to take.

Produced using **Shaping Tomorrow's six-stage process for converting external change into decision-ready intelligence**.

STRATEGIC PICTURE AT A GLANCE

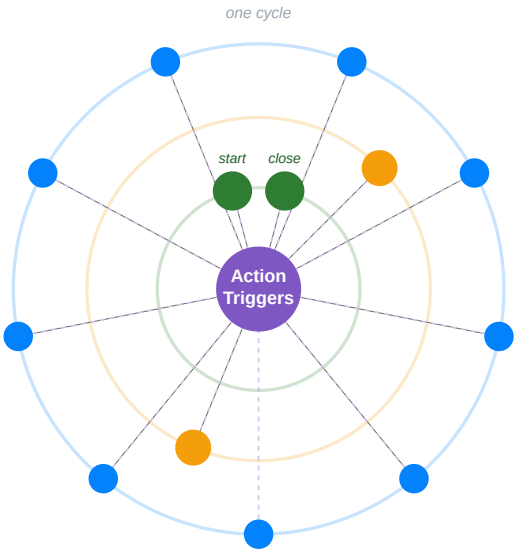
4	4	5	1
Weak signals became measurable	Strategic assumptions changed	Actions now decision-shaped	Strategic constraint replaced

DRAWING ON

- **Decision Intelligence, 15 October 2026 · 'Fewer Rules on Paper'**
- **Signal Scan, 12 October 2026 · 'From Exemption to Discretion'**
- **Signal Scan, 5 October 2026 · 'AI Assistants as Search Rivals'**
- **Signal Scan, 28 September 2026 · 'Standards, Not Relief'**

DETECT · ASSESS · DECIDE · ACT

- Signal Scan, 21 September 2026 · 'Likely, Not Possible'
- Change Tracker, 18 September 2026 · 'Enforcement and Liability Bind'
- Signal Scan, 14 September 2026 · 'Frontier Enforcement Moves to Brussels'
- Signal Scan, 7 September 2026 · 'Disclosure Before Design'
- Signal Scan, 31 August 2026 · 'Deputised: Providers as Enforcers'
- Signal Scan, 24 August 2026 · 'Nominal at the Border'
- Change Tracker, 21 August 2026 · 'Europe Switches On AI Enforcement'
- Signal Scan, 17 August 2026 · 'Regulation by Purchase Order'
- Decision Intelligence, 13 August 2026 · 'When Enforcement Went Local'



Nine weeks of continuous monitoring, resolved into one decision-grade synthesis at the centre.

Early warnings

Signals the portfolio surfaced before consensus formed, in the order they hardened.

LEAD TIME 5 WEEKS AHEAD | SIGNAL SCAN | DECISION INTELLIGENCE

Vulnerability reports filed now will be read later as evidence of how safely products were designed.

INITIAL SIGNAL

We identified that the Cyber Resilience Act's first binding duty was the reporting duty, reaching every connected product already on the EU market through a 24-hour clock, fifteen months before the design rules apply.

NOW EVIDENT

- **Live**: reporting has applied since 11 September 2026 through ENISA's platform, and Germany's federal cyber security office confirmed the duty the same day.
- **Unenforced**: fines start only on 11 December 2027, so the duty runs for about 15 months with no threat of fines.
- **Unready**: in a survey for Bitkom, only 29% of firms knew what the Act meant for them.

REPORTING DUTY **since 11 September 2026** DESIGN RULES AND FINES **11 December 2027**

DECIDE

Product and security teams should run the 24-hour early warning as a live duty today, for products already on sale.

LEAD TIME 3 WEEKS AHEAD | SIGNAL SCAN | DECISION INTELLIGENCE

US banks will face lighter examinations while the states keep adding rules for everyone else.

INITIAL SIGNAL

We identified that US bank examiners must now prove likely material financial harm before raising a finding, under a rule the Federal Reserve did not join.

NOW EVIDENT

- **Washington**: the final rule says speculative concerns about future harm should not support a formal finding, and binds from 2 November 2026.
- **The states**: California's governor signed over two dozen privacy and AI bills, and 36 state attorneys general asked Congress not to block state AI laws.

BANK RULE BINDS **2 November 2026**

PREPARE

Compliance leads should plan US obligations state by state and treat federal relief as sector-specific.

LEAD TIME 2 WEEKS AHEAD | SIGNAL SCAN | CHANGE TRACKER | DECISION INTELLIGENCE

High-risk AI dates will hold only if the missing standards arrive, so December 2027 is a standards deadline.

INITIAL SIGNAL

We identified that the EU delayed its high-risk AI rules because its own harmonised standards and conformity-assessment bodies were not ready, not mainly to relieve industry.

NOW EVIDENT

- **The law**: Regulation (EU) 2026/1744 moves the dates to 2 December 2027, and to 2 August 2028 for AI built into products.
- **The standards**: the first harmonised standard, on quality management, has been published, while the standards bodies needed exceptional measures to finish six of the most delayed drafts.

HIGH-RISK AI RULES **2 December 2027**

PREPARE

Technology and legal teams should track the standards timetable, not only the legal date, and build design files as each standard lands.

LEAD TIME 1 WEEK AHEAD | SIGNAL SCAN | DECISION INTELLIGENCE

AI assistants will become a regulated route to customers, and the largest may be regulated as gatekeepers themselves.

INITIAL SIGNAL

We identified that EU and UK competition regulators had begun to treat AI assistants as rivals to Google search, entitled to its data, Android access and choice-screen places.

NOW EVIDENT

- **Brussels**: binding measures require Google to give rival AI assistants equal access to Android features and to share search data with chatbots that offer search.
- **London**: the CMA proposes putting AI assistants on Google's choice screens, with a decision expected by the end of the year.
- **The assistants**: the EU now classes ChatGPT as a very large search engine, and ChatGPT has told the Commission it exceeds the Digital Markets Act's thresholds.

EU SEARCH-ENGINE DUTIES **by January 2027**

MONITOR

Strategy and digital teams should watch the CMA decision and any gatekeeper designation of an AI assistant.

Assumptions that have shifted

Cycle-over-cycle assumption changes, in decreasing order of strategic weight.

SHIFT 1 OF 4 REPLACED

Regulators' enforcement capacity decides how exposed a company is

PRIOR CYCLE HELD

August closed on "The constraint moved from the rulebook to the enforcer", sizing compliance to the enforcement capacity of each jurisdiction.

THIS CYCLE READS

The capacity gap is real, but the duties that bit this cycle needed little enforcer: they run on the company's own reporting clocks, declarations and records.

- **Reporting**: Cyber Resilience Act reports within 24 hours since September.
- **Production orders**: EU criminal production orders land on service providers, with 10-day and 8-hour clocks.
- **Customs and purchasing**: product identifiers mandatory at the border from 1 November 2026, and purchase rules carrying origin and cybersecurity conditions.

FORWARD THESIS

Size compliance to the processes the company must run, not only to the regulator's strength. The tripwire is **the first enforcement action or court claim that relies on a company's own report or declaration as evidence**.

SHIFT 2 OF 4 HOLDING

Disclosure deadlines keep moving because administrators, not laws, set them

PRIOR CYCLE HELD

August asked "whether the November date survives approval by the Office of Administrative Law, or moves a second time".

THIS CYCLE READS

Still open. California resubmitted its rules for approval on 21 September, so the 10 November date is not yet binding, while Europe's simplified sustainability standards were published and apply from 2027 financial years.

FORWARD THESIS

Anchor programmes on assurance-grade data rather than filing dates. The tripwire is **approval of California's rules before 10 November, or a second move**.

SHIFT 3 OF 4 SPLIT

Europe's AI rollback weakens its influence over the rules

PRIOR CYCLE HELD

August graded "The AI Act rollback reverses the Brussels effect" as weakened, reading the simplification as re-cutting rather than retreat.

THIS CYCLE READS

Both readings hold, in different places. Inside the EU, the simplification moved frontier enforcement to Brussels, with the AI Office exclusive over systems built on general-purpose models. Outside it, Asian governments write their own rules rather than copying the EU's.

- **Concentrating**: the AI Office has exclusive competence while only 9 of 27 member states have designated national authorities.
- **Diverging**: China is accelerating work on its own AI law, Korea's binding law is in force, and Japan will review its light-touch law.

FORWARD THESIS

Plan for a strong centre in Brussels and separate rulebooks in Asia. The tripwire is **the AI Office's first enforcement action against a frontier provider, and China's first draft AI law**.

SHIFT 4 OF 4 HOLDING

Europe's postponed AI rules are a split calendar, not a free deferral

PRIOR CYCLE HELD

August held "The Annex III postponement is a calendar split, not a free deferral", with a quieter marking deadline underneath.

THIS CYCLE READS

It held. Transparency enforcement began on 2 August, the high-risk dates moved by law to December 2027, and marking for generative AI already on the market still applies from 2 December 2026.

FORWARD THESIS

Treat 2 December as a live deadline. The tripwire is **whether providers mark AI-generated output on time, and the first complaints when they do not**.

Actions triggered

Each trigger names why it activates now, why it matters, the recommended actions, the primary decision owner, the decision window, and the conditions under which the recommendation should be reviewed.

DECIDE ACTION 1 SIGNAL SCAN DECISION INTELLIGENCE

Run Cyber Resilience Act reporting as a live duty for every connected product on sale in the EU.

TRIGGER CONDITION

This recommendation has been activated because the reporting duty has applied since 11 September 2026, because it covers products sold before the rules, and because firms say they do not yet know what the Act means for them.

PRIMARY DECISION OWNER **Head of product security, with the general counsel**

DECISION WINDOW IMMEDIATE **by 31 December 2026**

WHY THIS NOW MATTERS

A missed 24-hour warning carries no fine until December 2027, but the reports filed now become the record regulators and claimants will read.

RECOMMENDED ACTIONS

- **Immediate:** name an owner and test the 24-hour early warning for every product with digital elements sold in the EU.
- **Next quarter:** agree who reviews each report before it is sent, including legal.
- **Follow-on:** line up design documentation for the requirements that apply from 11 December 2027.

REVIEW CONDITIONS

This recommendation should be reviewed if ENISA or a national authority signals enforcement before December 2027, which would make it more urgent, or if the reporting platform changes how reports are filed.

PREPARE ACTION 2 SIGNAL SCAN CHANGE TRACKER DECISION INTELLIGENCE

Map the year-end EU duties against national laws, country by country.

TRIGGER CONDITION

This recommendation has been activated because the product liability rules are due on 9 December 2026 while only Hungary and Croatia had finished by September, because platform-work and AI-marking duties land on 2 December, and because the deforestation rules apply from 30 December.

PRIMARY DECISION OWNER **General counsel**

DECISION WINDOW IMMEDIATE **by 9 December 2026**

WHY THIS NOW MATTERS

Companies must prepare on EU dates, but the detail that decides claims and penalties sits in national laws that are late or still in draft.

RECOMMENDED ACTIONS

- **Immediate:** keep a register of each duty and whether national law exists in every country where you sell.
- **Next quarter:** review it monthly into 2027 as national laws land.

REVIEW CONDITIONS

This recommendation should be reviewed if most member states legislate on time, which would ease it, or if early claims cluster in the countries that legislated first, which would sharpen it.

PREPARE ACTION 3 SIGNAL SCAN DECISION INTELLIGENCE

Write reports, declarations and technical files on the assumption that a court or customs officer reads them next.

TRIGGER CONDITION

This recommendation has been activated because production orders now land directly on service providers, because product identifiers become mandatory at the border from 1 November 2026, and because no-fault liability for software arrives in December.

PRIMARY DECISION OWNER **General counsel and chief information officer**

DECISION WINDOW NEXT QUARTER **by 31 March 2027**

WHY THIS NOW MATTERS

Records made to satisfy one authority are now reachable by others, and a gap that looks untidy to a supervisor can look like a defect to a court.

RECOMMENDED ACTIONS

- **Immediate:** list the records each duty creates: incident reports, customs declarations, production-order responses and technical files.
- **Next quarter:** set retention, version control and legal review for each.
- **Follow-on:** test one record end to end as if it were disclosed in a claim.

REVIEW CONDITIONS

This recommendation should be reviewed if courts narrow disclosure under the new liability rules, or if customs data rules are delayed past 1 November.

PREPARE ACTION 4 SIGNAL SCAN DECISION INTELLIGENCE

Build one compliance programme with regional modules rather than one global rulebook.

TRIGGER CONDITION

This recommendation has been activated because Washington is easing supervision while California signed over two dozen privacy and AI bills, and because China, Korea, Japan and India are each writing their own rules.

PRIMARY DECISION OWNER **Chief compliance officer**

DECISION WINDOW NEXT PLANNING CYCLE **in the 2027 plan**

WHY THIS NOW MATTERS

A single programme built on EU law will over-comply in some markets and miss rules the EU does not have in others.

RECOMMENDED ACTIONS

- **Next quarter:** set a common core with separate modules for the US states, the EU, the UK and the main Asian markets.
- **Follow-on:** start with California and India, where the next dates fall.

REVIEW CONDITIONS

This recommendation should be reviewed if Congress passes a law overriding state AI rules, or if the EU and a major Asian jurisdiction agree to recognise each other's AI assessments.

MONITOR ACTION 5 SIGNAL SCAN DECISION INTELLIGENCE

Watch AI assistants become a regulated channel to customers.

TRIGGER CONDITION

This recommendation has been activated because Brussels requires Google to open Android features and search data to rival AI assistants, because London proposes adding them to Google's choice screens, and because ChatGPT has told the Commission it crosses the gatekeeper thresholds.

PRIMARY DECISION OWNER **Strategy director and head of digital**

DECISION WINDOW MONITOR ONLY **CMA decision expected by the end of 2026**

WHY THIS NOW MATTERS

These decisions set how customers will reach products through AI assistants, and on whose terms.

RECOMMENDED ACTIONS

- **Immediate:** note which products and partners depend on search or app-store visibility.
- **Follow-on:** review distribution plans when the CMA decides and if an AI assistant is designated a gatekeeper.

REVIEW CONDITIONS

Raise this to Prepare if the Commission designates an AI assistant as a gatekeeper, or if AI assistants appear on Google's choice screens. Stand it down if Google's court challenge suspends the EU measures.

The body of work, in one sentence

Over this cycle, the enforcement load moved from regulators onto companies' own systems. August was right that a funded enforcer decides exposure where a rule needs an inspector, but the duties that bit this cycle ran on reporting clocks, declarations and claims that companies operate themselves. The load-bearing variable for the next cycle is who reads those company records first: a regulator, a customs officer or a claimant's lawyer. The first dates that test it are 1 November, 2 December and 9 December 2026.

HOW THIS WAS MADE

The Decision-Grade Intelligence Method

Shaping Tomorrow's six-stage process for converting external change into decision-ready intelligence.

Scan · Filter · Stress-test · Judge · Trigger · Actionable Intelligence

See full methodology →

This briefing is not another report. It is the synthesis produced after continuously monitoring signals, tracking change, testing assumptions and updating scenarios throughout the cycle on **Regulation, Standards & Policy Change**. Its purpose is to identify the points at which accumulated evidence has become decision-changing: the early warnings the work caught before consensus formed, the assumptions that have shifted between cycles, and the actions now decision-shaped enough to act on. Continuous intelligence on this topic is available as a Single-Topic or Multi-Topic programme.

Discuss a Tailored Programme

Prepared by Shaping Tomorrow: 16 October 2026